Congress quiz: cram sheet

Key ideas

1. Representation: the **House** goes by population, the Senate gives every state two. Both houses by population is the Virginia Plan, not the Constitution.
2. House: 2-year terms, age 25, citizen 7 years, elected by voters. Senate: 6-year terms, age 30, citizen 9 years, chosen by **state legislatures** until 1913.
3. Supreme Court checks: the president **nominates** justices, the Senate confirms them, and the Court can strike down laws and treaties (judicial review).
4. Treaties need **two-thirds** of senators present. The vice president breaks ties, but a tie can never decide a two-thirds vote.

House vs. Senate

	House of Representatives	Senate
Representation	By population, recounted every 10 years by the census	Equal: two senators per state
Term	2 years; the whole House is up every election	6 years; about one-third of the Senate is up every 2 years
Age and citizenship	At least 25; a citizen for 7 years	At least 30; a citizen for 9 years
Elected by	The people, directly, from the start	State legislatures until the Seventeenth Amendment (1913); the people since
Only this house can	Impeach; start tax bills	Hold impeachment trials; confirm appointees; consent to treaties

Checks and balances

Three jobs	Congress makes laws (I), the president enforces them (II), the courts interpret them (III)
Veto	Overridden by two-thirds of each house; a pocket veto if Congress adjourns inside the 10 days
Impeachment	The House charges by majority; the Senate convicts with two-thirds; removal only

The Supreme Court

Justices	The president nominates, the Senate confirms by majority, they serve for life (good behavior)
Judicial review	1803 Marbury v. Madison: the Court strikes down laws and actions
Checks on the Court	Confirmation, the number of justices, impeachment, amendments

Treaties and ties

Treaties	The president signs; the Senate consents with two-thirds of senators present; the president ratifies
Vice president	Votes only to break a tie, so never decides a two-thirds vote
Treaty vs. Constitution	The Constitution wins; the Court can rule a treaty unconstitutional

Don't mix these up

Virginia Plan	Both houses by population; the Constitution made only the House proportional
Majority vs. two-thirds	A majority passes bills and confirms judges; two-thirds for treaties, overrides and convictions
Impeach vs. remove	The House impeaches (charges); only a Senate conviction removes
Ratification	The Constitution: state ratifying conventions, nine states. Treaties: the president